

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHEE THAO-YANG,

Petitioner

VS.

LY YANG,

Respondent

) Case Number: FDI-26-802773

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
VOCATIONAL TRAINING COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Chee Thao-Yang (Mother) and Respondent Ly Yang (Father) married on 12/19/2008 and separated on 12/21/2025, for a marriage of 17 years. The parties have two minor children, Martin (DOB: 9/9/2012, age 13) and Ailee (DOB: 1/19/2017, age 9). Mother is represented by attorney Kasey Dunton. Father is currently self-represented.
- 2) On 2/11/2026, in related Case No. FDV-26-818908, Judge Luna denied Mother's Request for Domestic Violence Restraining Order against Father and ordered the parties to share joint legal and joint physical custody of their children. Judge Luna ordered Father to have 7 days of visitation with the children in California with 21 days' notice to Mother.
- 3) Now on for hearing is Father's Request for Order filed 5/18/2026 seeking: temporary guideline spousal support, \$50,000 in attorney's fees and costs, an advance of community property RSUs in the amount of \$70,000 to fund Father's vocational evaluation as a commercial pilot, and a stay on any seek-work order or imputation order until he can complete that training. Father states that he

1 vacated the parties' shared apartment because Mother told him he had to either pay the rent or
2 vacate the apartment. Father states he was unable to pay the rent and so vacated the apartment
3 even though he had nowhere else to go. Father states that Mother subsequently cut him off
4 financially. Father states that he lived at his workplace and then in his car, and then relocated to
5 Minnesota where family members are currently housing him and helping him pay for food. Father
6 states that prior to his relocation, he had been employed part-time (30 – 35 hours per week,
7 earning \$22 per hour) for United Airlines working ground crew since December 2023. Father
8 states he worked part-time so he could be available for the parties' children because Mother's job
9 is time intensive. Father states that he has been diligently applying for work in Minnesota and has
10 been offered a position with Unifi Aviation LLC and will earn \$18.16 per hour but Father is
11 unsure of how many hours he will receive. Father states that he would like to enroll full-time in
12 an accelerated professional pilot program, but he would not be able to do that program full time
13 and also working. Father states that Mother is an accounts manager for Amazon with a significant
14 base income, bonuses, and RSUs and the parties' joint tax return filed in 2024 reflects her making
15 \$300,000 that year.

- 16 4) On 5/18/2026, Father's prior attorney Andrew Graham filed a declaration wherein he states
17 Father has paid \$17,525 in fees to date for work getting up to speed, drafting the instant motion,
18 reviewing pleadings filed by Mother, and conferring with Father. Father's attorney states, "The
19 litigation is not overtly complex but there are anticipated to be issues surrounding custody and
20 visitation, child and spousal support, and division of property. There are currently already two
21 motions pending and this follows an unsuccessful request for a DVRO from Petitioner. I therefore
22 reasonably expect some of these matters to require litigation in which case the \$50,000 requested
23 is likely to be only a portion of the total fees requested. Given the large disparity in access to
24 funds, Petitioner bearing this portion is reasonable."
- 25 5) On 5/28/2026, a Substitution of Attorney was filed wherein Father's former attorney Andrew
26 Graham substituted out as Father's attorney of record. Father is now self-represented.
- 27 6) On 7/9/2026, Mother filed a Responsive Declaration. Mother asks the Court to order guideline
28 spousal and child support and impute income to Father, order Father to seek work, issue a Gavron
29 warning against Father, and deny Father's other requests for order. Mother states Father

1 voluntarily quit his job and relocated to Minnesota. Mother states that Father's request to fund
2 flight school is out of touch with reality. Mother states Father's request to fund flight school is
3 unrealistic because he has contemplated becoming a pilot for years, the program would require
4 additional years of flight training before he could become employable as a commercial pilot, and
5 the community RSUs are worth approximately \$50,000 rather than the \$70,000 Father seeks.
6 Regarding Father's request for attorney's fees, Mother states she does not have superior access to
7 assets from which to pay attorney's fees. She has paid her fees using a personal loan and there is
8 no premarital separate property. Mother also states that since the parties separated, she has had to
9 pay all of the children's expense as well as community debts.

10 7) On 7/9/2026, Wife filed an Income and Expense Declaration. Wife states that she works 40 hours
11 per week as a Technical Account Manager for Amazon and earns \$15,492 per month.

12 8) On 7/14/2026, Husband filed a Reply Declaration. Husband argues he did not voluntarily reduce
13 his income but was forced to relocate due to Wife's alleged threats of legal action. Husband states
14 he has obtained employment and developed what Husband states is a cost-effective plan to
15 become a commercial pilot. Husband also accuses Wife of misconduct, including violating the
16 Standard Family Law Restraining Orders, which Husband states warrants an award of attorney's
17 fees and Family Code section 271 sanctions.

18 9) On 7/14/2026, Husband filed an Income and Expense Declaration. Husband states he began a
19 position as a ramp agent in Minnesota on 6/11/2026. Husband states he earns \$18.16 per hour and
20 works 32 hours per week.

21 **B. Findings and Order**

22 1) Mother's request to impute income to Father what he was previously earning (\$2,860 per month)
23 is hereby granted.

24 2) The Court finds good cause to issue a support order effective 8/1/2026 as the Court finds Mother
25 was paying rent for two apartments (both the marital apartment and her new apartment) between
26 February 2026 and July 2026 and did not have the ability to pay for support during that period.

27 3) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
28 herein, Mother shall pay Father temporary guideline spousal support of \$2,137 per month and
29 Father shall pay Mother guideline child support of \$741 per month, for a net payment from

1 Mother to Father of \$1,396 per month. One-half shall be due and payable by the 1st and one-half
2 shall be due and payable by the 15th of each month.

- 3 4) The Court notes that the attached XSpouse calculation is based on a 100% timeshare for Mother,
4 which both parties listed is the current timeshare in their Income and Expense Declarations.
- 5 5) Father's request for an advance of community property RSUs to fund Father's vocational
6 evaluation as a commercial pilot is denied.
- 7 6) Because Father is currently working, Father's request for a stay on any seek-work order or
8 imputation order until he can complete that training is denied.
- 9 7) Father's request for need-based attorney's fees and costs is denied without prejudice to a new
10 Request for Order. Father's attorney has substituted out of the case and it is unclear from Father's
11 Reply Declaration whether he is still making that request. Moreover, Father's attorney's
12 declaration filed 5/18/2026 did not provide sufficient detail for the Court to make a determination
13 regarding whether the fees requested are just, reasonable, and necessary. If Father files a new
14 Request for Order seeking need-based attorney's fees, Father must explain in detail what tasks his
15 attorneys have performed to date as well as what tasks are left to be completed to bring this case
16 to completion.
- 17 8) Mother's unopposed request for a Gavron warning against Father is granted. The Court advises
18 Father, pursuant to Family Code section 4330(b), that he is expected to make reasonable good-
19 faith efforts to become self-supporting within a reasonable period of time. Failure to make
20 reasonable efforts toward becoming self-supporting may constitute a change of circumstances
21 warranting modification or termination of spousal support.
- 22 9) Mother's attorney shall prepare the Findings and Order After Hearing.
- 23 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
24 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
25 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
26 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
27 proposed order after hearing directly to the court. Failure to submit the order after hearing within
28 10 days may allow the other party to prepare a proposed order and submit it to the court in
29 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	2	2026			
% time with NCP	0.00 %	0.00 %				
Filing status	SINGLE	HH/MLA	GUIDELINE	Comb. net spendable	12989	12989
# exemptions	1 *	3 *	Nets(adjusted)	Percent change	0%	0%
Wages+salary	2860	15492	Father 2150	Father		
Self-employed income	0	0	Mother 10839	Payment cost/benefit	1396	1396
Other taxable income	0	0	Total 12989	Net spendable income	3546	3546
TANF+CS received	0	0	Support	Change from guideline	0	0
Other nontaxble income	0	0	Addons 0	% of combined spendable	27%	27%
New spouse income	0	0	Guideln CS -741	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	S.Clara SS 2137	Total taxes	356	356
Adjustments to income	0	0	Total 1396	Dep. exemption value	0	0
SS paid prev marriage	0	0	CS range: -544--741	# withholding allowances	0	0
CS paid prev marriage	0	0		Net wage paycheck	2042	2042
Health insurance	354	679		Mother		
Other medical expense	0	0		Payment cost/benefit	-1396	-1396
Property tax expense	0	0		Net spendable income	9443	9443
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	73%	73%
Misc tax deductions	0	0	CS -741	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS 2137	Total taxes	3974	3974
Required union dues	0	0	Total 1396	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving 0	Net wage paycheck	10105	10105
Other GDL deductions	0	0	Releases 0			
Child care expenses	0	0				

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	741	Father	741	Father
Martin	0 - 100	0	0	0	Father	274	Father	274	Father
Ailee	0 - 100	0	0	0	Father	467	Father	467	Father